

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Arreaga	Team: Squad #02	CCRB Case #: 201604293	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/17/2016 3:45 PM	Location of Incident: West 144th Street and 7th Avenue	18 Mo. SOL 11/17/2017	Precinct: 32		
Date/Time CV Reported Tue, 05/17/2016 4:01 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/17/2016 4:01 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Risel Martinez	22049	953063	032 PCT
2. POM John Woo	28328	954431	032 PCT
3. SGT Sean Aman	03440	937975	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Sean Aman	Abuse: Sergeant Sean Aman stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM John Woo	Abuse: Police Officer John Woo stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Risel Martinez	Abuse: Police Officer Risel Martinez stopped the vehicle in which § 87(2)(b) was an occupant.	C . Exonerated
D . POM Risel Martinez	Abuse: Police Officer Risel Martinez frisked § 87(2)(b)	D . Substantiated
E . SGT Sean Aman	Abuse: Sergeant Sean Aman searched the vehicle in which § 87(2)(b) was an occupant.	E . Substantiated
F . POM Risel Martinez	Abuse: Police Officer Risel Martinez searched the vehicle in which § 87(2)(b) was an occupant.	F . Substantiated
G . POM Risel Martinez	Abuse: Police Officer Risel Martinez interfered with § 87(2)(b)'s use of a recording device.	G . Substantiated
H . POM Risel Martinez	Abuse: Police Officer Risel Martinez refused to provide his name to § 87(2)(b)	H . Unsubstantiated

Case Summary

On May 17, 2016, at approximately 3:45 p.m., Sergeant Sean Aman, Police Officer John Woo, and Police Officer Risel Martinez of the 32nd Precinct stopped § 87(2)(b)'s vehicle on the corner of West 144th Street and 7th Avenue in Manhattan, after observing § 87(2)(b)'s vehicle with tinted windows and § 87(2)(b) allegedly using a cellphone (**Allegations A, B, and C**). Police Officer Martinez told § 87(2)(b) to roll down his back passenger windows. After § 87(2)(b) stated that he did not feel comfortable rolling down his windows, Police Officer Martinez ordered him to exit the vehicle. § 87(2)(b) left his cellphone recording on the driver's seat. Police Officer Martinez patted down § 87(2)(b) (**Allegation D**). Police Officer Martinez searched § 87(2)(b)'s vehicle under the supervision of Sergeant Aman (**Allegations E and F**). During the search, Police Officer Martinez interfered with § 87(2)(b)'s cellphone's ability to visually record by allegedly moving it to the backseat (**Allegation G**). Police Officer Martinez allegedly did not provide his name to § 87(2)(b) after he requested it (**Allegation H**). § 87(2)(b) was not arrested or issued a summons as a result of this incident.

Video footage was provided by § 87(2)(b) who recorded the incident on his cellphone. The entire video can be viewed in IA#33 (Board Review 01). Relevant clips have been attached in the relevant portions of the Findings and Recommendations Section below.

Mediation, Civil and Criminal Histories

- Mediation was offered to but rejected by § 87(2)(b) § 87(2)(b).
- As per the NYC Comptroller's Office, as of June 30, 2016, § 87(2)(b) has not filed a Notice of Claim regarding this incident (Board Review 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has no previous CCRB complaints.
- Sergeant Sean Aman has been a member of the NYPD for ten years and has had no prior CCRB complaints. He is currently involved in open CCRB case #201604395 (see officer history).
- Police Officer John Woo has been a member of the NYPD for three years and has had one allegation in one case with no substantiated allegation (see officer history).
- Police Officer Risel Martinez has been a member of the NYPD for three years and has had eight allegations in two cases with no substantiated allegations. He is currently involved in open CCRB case #201604395 (see officer history). § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- Sergeant Aman, Police Officer Woo, and Police Officer Martinez all stated that it was a collective decision to stop § 87(2)(b)'s vehicle. § 87(2)(g)
- Police Officer Martinez briefly frisked § 87(2)(b) immediately after he exited his vehicle. Sergeant Aman did not recall whether he observed Police officer Martinez frisk § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

- Sergeant Aman, as the supervisor on scene, could have terminated the vehicle search once he observed Police Officer Martinez searching the vehicle. He did not deny seeing Police Officer Martinez searching the vehicle but stated that he did not recall observing him doing so during his interview. § 87(2)(g)

Allegation A – Abuse of Authority: Sergeant Sean Aman stopped the vehicle in which

§ 87(2)(b) **was an occupant.**

Allegation B – Abuse of Authority: Police Officer John Woo stopped the vehicle in which

§ 87(2)(b) **was an occupant.**

Allegation C – Abuse of Authority: Police Officer Risel Martinez stopped the vehicle in which

§ 87(2)(b) **was an occupant.**

§ 87(2)(b) filed his initial complaint with the CCRB via telephone on May 17, 2016, and provided a phone statement on May 19, 2016 (Board Review 04). On May 24, 2016, § 87(2)(b) was interviewed at the CCRB (Board Review 05). On June 15, 2016, Police Officer John Woo was interviewed at the CCRB (Board Review 06). On June 22, 2016, Sergeant Sean Aman and Police Officer Risel Martinez were interviewed at the CCRB (Board Reviews 07 and 08).

§ 87(2)(b) stated that as he was driving on 7th Avenue in Manhattan he heard a police siren and pulled over on the corner of West 145th Street and 7th Avenue. He saw an unmarked police vehicle stop behind his vehicle. Three officers exited the unmarked vehicle and approached his vehicle. § 87(2)(b) acknowledged that his vehicle had dark-tinted windows and provided a photograph of the vehicle he operated on the incident date (Board Review 09). § 87(2)(b) denied having used his cellphone prior to the officers pulling him over.

Sergeant Sean Aman stated that Police Officer Risel Martinez informed him that he had observed § 87(2)(b) using a cellphone on the corner of West 145th Street and Lenox Avenue but he did not recall seeing § 87(2)(b) using a cellphone.

Police Officer John Woo and Police Officer Martinez stated that they both observed § 87(2)(b) with a cellphone to his ear while operating his vehicle.

All three officers corroborated that § 87(2)(b)'s vehicle had dark-tinted windows. All three officers corroborated that it was collective decision to stop § 87(2)(b)'s vehicle for both the tints and his alleged use of a cellphone. The officers stated that ultimately, once they determined that § 87(2)(b) had no outstanding warrants, they issued a warning and used their discretion to not issue summonses to him for the traffic infractions.

Officers may stop a vehicle when they have probable cause that the motorist has committed a traffic violation. People V. Robinson, 97 N.Y.S.2d 341 (2001) (Board Review 10).

Police may lawfully stop a vehicle for a traffic infraction of excessively tinted windows. People v. Collins, 963 N.Y.S.2d 890 (2013) (Board Review 11).

§ 87(2)(g)

§ 87(2)(g)

Allegation D – Abuse of Authority: Police Officer Risel Martinez frisked § 87(2)(b)

It is undisputed that Police Officer Martinez ordered § 87(2)(b) to lower the back passenger windows of his vehicle and § 87(2)(b) replied that he did not feel comfortable doing so. Police Officer Martinez told § 87(2)(b) since he did not feel comfortable lowering his vehicle windows he needed to exit the vehicle. Once he exited the vehicle, § 87(2)(b) leaned over the side of the vehicle and Police Officer Martinez patted him down. § 87(2)(b) stated that he had not consent to a search and Police Officer Martinez replied it was not a search but for the safety of the officers.

Police Officer Martinez stated that as he sat inside of the police vehicle behind § 87(2)(b)'s vehicle, and as he was approaching § 87(2)(b)'s vehicle, he saw a silhouette of § 87(2)(b) who appeared to dip his shoulder and make hand motions that appeared as if he was reaching for something. Police Officer Martinez was unable to provide a further description of the movements § 87(2)(b) made or the number of times he made them because he was unable to see clearly through the vehicle's dark-tinted back window. He explained that from his experience a person making these movements could be hiding a weapon or something. He patted down § 87(2)(b)'s waistband to ensure that he had no weapons on his person. He stated that § 87(2)(b)'s refusal to lower his windows coupled with the shoulder dipping he had observed § 87(2)(b) previously doing caused him to fear for his safety. Police Officer Martinez could not articulate a more specific reason to believe that § 87(2)(b) was in possession of a weapon or the type of weapon he believed § 87(2)(b) may have possessed.

Sergeant Aman stated that as he was approaching § 87(2)(b)'s vehicle he observed a silhouette through the vehicle's back tinted window that appeared as if § 87(2)(b) was moving around in his vehicle. He, however, could not describe these movements in any additional detail.

§ 87(2)(b) stated that, after bringing his vehicle to a stop, he reached for his cellphone and began recording.

Video footage provided by § 87(2)(b) begins before the officers arrive to his vehicle. § 87(2)(b) begins the recording, places his cellphone on the vehicle dashboard, sits with his hands seemingly in his lap, and then appears to reach into his pockets as the officers can be heard reaching the vehicle. At this point, Police Officer Martinez orders § 87(2)(b) to lower his back windows. After stating that he did not feel comfortable, Police Officer Martinez orders § 87(2)(b) to exit the vehicle. As § 87(2)(b) exits the vehicle he is ordered to lean over the side of the vehicle. Police Officer Martinez pats down § 87(2)(b) while stating that for his safety and § 87(2)(b)'s safety he needs to make sure that § 87(2)(b) has nothing on him that would hurt him or his fellow officers.



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An officer may frisk an individual if the officer reasonably suspects that the person is armed. People v. DeBour, 40 N.Y.2d 210 (1976) (Board Review 12).

During a vehicle stop, a driver's motion to place an object in the backseat coupled with his motion prior to the vehicle stop of looking away and slumping down does not suggest that the person was armed. Once the officers remove the driver from the vehicle, he poses no further threat to their immediate safety. People v. Chann, 221 A.D.2d 155 (1995 – 1st Dept.) (Board Review 13).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be substantiated.

Allegation E – Abuse of Authority: Sergeant Sean Aman searched the vehicle in which § 87(2)(b) was an occupant.

Allegation F – Abuse of Authority: Police Officer Risel Martinez searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that Police Officer Martinez searched the inside of § 87(2)(b)'s vehicle. Police Officer Martinez stated that he searched the areas where he had previously observed § 87(2)(b) possibly reaching toward, including underneath the seats, to ensure that § 87(2)(b) had not hidden anything. He did not recall opening the glove compartment and opening any bags but stated that he could have done so. He explained that he searched the vehicle because he would allow § 87(2)(b) back into his vehicle while he possibly issued him a summons and wanted to ensure there were no weapons inside of the vehicle that § 87(2)(b) could reach for.

Sergeant Aman did not recall seeing Police Officer Martinez searching the inside of § 87(2)(b)'s vehicle.

Video footage shows Police Officer Martinez entering § 87(2)(b)'s vehicle after patting down § 87(2)(b). The camera then moves and goes blank but continues with an audio recording in which Police Officer Martinez is heard searching through § 87(2)(b)'s vehicle for approximately two minutes.



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If officers have no articulable reason to suspect criminal activity or to fear for their safety, a search of the vehicle is not justifiable. A traffic stop initiated after observing an ordinary traffic infraction will not justify a search of the vehicle. If an officer conducts a visual inspection of the interior of the vehicle that would have otherwise been hidden from plain view, this constitutes a search. People v. Aquino, 119 A.D. 2d 464 (1986) (Board Review 14).

During a vehicle stop, a driver's motion to place an object in the backseat coupled with his motion prior to the vehicle stop of looking away and slumping down does not suggest that the person was armed and does not provide sufficient basis to search the vehicle. Once the officers remove the driver from the vehicle, he poses no further threat to their immediate safety. People v. Chann.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be **substantiated**.

Allegation G – Abuse of Authority: Police Officer Risel Martinez interfered with § 87(2)(b)'s use of a recording device.

It is undisputed that § 87(2)(b) left his cellphone recording on the driver's seat after Police Officer Martinez asked him to leave the cellphone in the vehicle.

Police Officer Martinez stated that he did not recall observing § 87(2)(b)'s cellphone in the vehicle and did not recall having any physical contact with the cellphone while in the vehicle. He did not recall taking § 87(2)(b)'s cellphone and throwing it to the back passenger's seat.

Video footage shows § 87(2)(b) leaving his cellphone recording on the driver's seat. After completing the frisk of § 87(2)(b) Police Officer Martinez is seen entering into the vehicle through the open driver's side door and appears to immediately make contact with the cellphone, causing it to move and for the screen to go blank. Before the screen goes blank, the camera is seen moving past the front passenger seat and going towards the rear of the car. The cellphone continues recording; however, only audio can be heard.



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Civilians are permitted to photograph, videotape, and record police actions. Patrol Guide Procedure 208-03 (Board Review 15).

According to a Finest Message dated August 6, 2014, officers are not permitted to interfere with an individual's use of a recording device to record police interactions. Officers are permitted to advise individuals to not get close and may take action only if the individual interferes with the operation or the safety of officers or the public. Mere recording does not constitute interference in and of itself. (Board Review 16)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation G** be **substantiated**.

Allegation H – Abuse of Authority: Police Officer Risel Martinez refused to provide his name to § 87(2)(b)

§ 87(2)(b) stated that at the rear of his vehicle at the end of their interactions, he asked Police Officer Martinez to provide his name and Police Officer Martinez responded by providing his shield number as #2049. § 87(2)(b) insisted that he wanted Police Officer Martinez's name. Police Officer Martinez stated that all § 87(2)(b) needed was his shield number.

Police Officer Martinez stated that § 87(2)(b) requested his name and shield number. He identified himself as Police Officer Martinez with shield number #22049 to § 87(2)(b) and did not refuse to provide one over the other.

Sergeant Aman stated that Police Officer Martinez provided both his name and shield number to § 87(2)(b)

Police Officer Woo did not recall if Police Officer Martinez refused to provide his name to § 87(2)(b)

An officer must courteously and clearly state his/her rank, name, shield number and command, or otherwise provide them, to anyone who requests him/her to do so. Patrol Guide Procedure 203-09 (Board Review 17).

Video footage obtained did not record this conversation between § 87(2)(b) and Police Officer Martinez because they were out of range of the cellphone recording. § 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **unsubstantiated**.

Squad: 2

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date